

BEFORE THE STATE GRIEVANCE BOARD

STATE OF COLORADO

Case No. RG GB DLIVO

STIPULATION AND ORDER

IN THE MATTER OF DISCIPLINARY PROCEEDINGS AGAINST THE
LICENSE TO PRACTICE PROFESSIONAL COUNSELING IN THE STATE
OF COLORADO OF SHARON K. BENSON, LPC, LICENSE NO. 776,

Respondent,

IT IS HEREBY STIPULATED and agreed by and between the Colorado State Grievance Board ("Board") and Sharon K. Benson, LPC ("respondent"), as follows:

1. The Board has jurisdiction over the person of respondent and the subject matter set forth in this stipulation and order.
2. The State Board of Licensed Professional Counselor Examiners granted respondent a license to practice professional counseling in Colorado on November 16, 1993. Respondent has been licensed to practice professional counseling since that date and was so licensed at all times relevant to the events leading to this disciplinary action. Respondent holds license number 776.
3. On or about February 5, 1996 the Board received a complaint alleging that respondent had engaged in a number of prohibited activities under the Colorado Mental Health Statute involving practice below generally accepted standards of practice; practice outside her area of training, experience, or competence; and violation of confidentiality.
4. Following an investigation of the complaint the Board determined that reasonable grounds existed to refer this matter to its legal counsel, the Colorado Attorney General, for initiation of disciplinary action regarding respondent's license to practice professional counseling and practice of psychotherapy.
5. Respondent understands that she has the right to a hearing with respect to the complaint filed against her. Respondent further understands and agrees that, by voluntarily and knowingly entering into this stipulation and order, she waives her right to a hearing; relieves the Board of its burden of proving a violation of the Colorado Mental Health Statute; gives up her right to present a defense by oral and documentary evidence; and gives up her right to cross-examine witnesses. Respondent understands that she has the right to appeal the Board's final order to the Court of

Appeals. Respondent further understands and agrees that, by voluntarily and knowingly entering into this stipulation and order, she waives her right to appeal or otherwise contest the validity of the final Board order entered pursuant to this stipulation.

6. Respondent agrees that she freely and voluntarily enters into this agreement including surrender of her professional counseling license; cessation of the practice of psychotherapy; and if she should seek to practice psychotherapy again she must submit to a practice evaluation, mental status evaluation, and probation involving practice monitoring, therapy, and continuing education. Respondent also agrees that she will voluntarily enter into a stipulated order for injunction prohibiting her from practicing psychotherapy, under C.R.S. §12-43-708 if she does not fulfill the requirements of this stipulation and order.

7. Respondent admits and agrees as follows:

a. Respondent entered into a professional and therapeutic relationship with client PD as part of her practice of professional counseling and psychotherapy, to provide PD with professional counseling as defined in C.R.S. §12-43-601(4) and psychotherapy as defined in C.R.S. §12-43-201(9).

b. During the course of the therapeutic relationship respondent acted or failed to act in a manner which does not meet generally accepted standards of practice in violation of C.R.S. §12-43-704(1)(g).

c. During the course of the therapeutic relationship respondent provided service outside her area of training, experience, or competence in violation of C.R.S. §12-43-704(h).

8. Respondent hereby freely and voluntarily surrenders her license to practice professional counseling in the state of Colorado.

9. Respondent has ceased the practice of professional counseling and psychotherapy in the state of Colorado and surrendered her professional counseling license. Respondent may not resume the practice of psychotherapy for at least one year from the date this stipulation and order is fully executed. If and when respondent seeks to resume the practice of psychotherapy in Colorado she shall notify the State Grievance Board and comply with all terms of this stipulation and order.

10. Respondent shall report to the Board on the termination of her clients, describing her termination process and any problems which arise during the termination process. Once this stipulation and order is fully executed respondent is prohibited from practicing psychotherapy for at least one year and may resume the practice of psychotherapy only after she satisfies all requirements

in this stipulation and order.

11. After at least one year respondent may resume the practice of psychotherapy after the following requirements have been met:

a. She must be evaluated by an independent, Board-approved therapist ("therapy evaluator") who conducts a mental status evaluation and determines that she is safe to practice and can practice professional counseling and psychotherapy with skill and safety for her clients and in accordance with generally accepted standards of practice. As part of this evaluation the therapy evaluator shall be provided the Board's file and pertinent information on this case. Respondent shall provide the therapy evaluator with any medical or psychological information requested by therapy evaluator. The therapy evaluator shall provide a written report to the Board describing the evaluation and findings.

b. She must be evaluated by a Board-approved therapist ("practice evaluator") who evaluates all aspects of respondent's proposed practice of psychotherapy and determines that she is safe, qualified and competent to conduct her proposed practice of psychotherapy with skill and safety for her clients and in accordance with generally accepted standards of practice. The practice evaluator shall identify any areas of psychotherapy where respondent is not qualified or competent to practice and respondent shall not practice in these areas until she has been found qualified or competent. The practice evaluator shall provide a written report to the Board describing the evaluation and findings.

c. She has a Board-approved practice monitor ("practice monitor") and Board-approved therapist ("therapist") in place.

d. Complete continuing education in the areas of dissociative disorders, appropriate practice boundaries, dual relationships, legal/ethical issues relating to the practice of psychotherapy. This education will be considered by the practice evaluator and Board in determining whether respondent is qualified and competent to practice in all areas of psychotherapy. This education shall include an approved jurisprudence workshop.

12. Upon satisfaction of all requirements set out in paragraph 11 respondent may resume the practice of psychotherapy. Her practice of psychotherapy shall be on probation for a period of at least three years. During the period of probation respondent can practice psychotherapy only if she complies with all the conditions of probation and has a practice monitor and therapist in place.

13. The conditions of respondent's probation are:

a. Respondent can not practice psychotherapy in any area

the Board determines, based on the evaluation, that she is not qualified or competent to practice. The Board will determine necessary actions that respondent must take and conditions she must meet so that she can become qualified and competent to practice in the areas where she is determined not qualified or competent. Once respondent satisfies the Board that she has taken the necessary action and met the conditions set by the Board she may practice in such area(s) under the other terms of her probation.

b. Respondent will strictly observe the prohibitions set forth in C.R.S. §12-43-704(1) and assure that she does not engage in any activities that are prohibited activities or fall below generally accepted standards of practice.

c. Respondent's practice of psychotherapy must be monitored by a Board-approved monitor ("practice monitor"), who both monitors respondent's practice of psychotherapy and reports in writing to the Board in accordance with this order. The terms of the practice monitoring are as follows:

(i) The practice monitoring must consist of individual face-to-face contact between respondent and her practice monitor that occurs for at least one hour or such longer time as the practice monitor deems necessary for every twenty hours of client contact, but at least once a month. All of respondent's psychotherapy cases will be monitored. During practice monitoring, respondent and her practice monitor must review and discuss each of respondent's active cases at least once every month to allow the practice monitor to determine whether respondent is practicing psychotherapy in accordance with generally-accepted standards of practice and with reasonable skill and safety for her clients.

(ii) The practice monitor is authorized to examine and shall examine such client records and case files maintained by respondent as the practice monitor or the Board deems appropriate and necessary to determine whether respondent is practicing psychotherapy in accordance with generally-accepted standards of practice and with reasonable skill and safety for her clients.

(iii) The practice monitor must report the results of monitoring to the Board in writing and send a copy of each report to the respondent and the therapist. The practice monitor must submit her/his first report on the fifth day of the month following the first full month of practice monitoring. The practice monitor shall submit subsequent reports on the fifth day of each month thereafter (i.e., on a monthly basis) for the first 12 reports. After the submission of the first 12 reports, unless otherwise directed by the Board, the practice monitor shall submit her/his reports on the fifth day of every third month (i.e., on a quarterly basis) until the period of probation is successfully completed.

(iv) After the Board's written approval of the practice monitor, respondent and her practice monitor shall enter into a written contract for monitoring. The practice monitor shall provide a copy of that written contract to the Board as part of her/his first report to the Board. The first report must also confirm that the practice monitor has received a copy of this order and of the Board's file; has read these documents; and understands the duties and responsibilities s/he is undertaking as respondent's practice monitor. The practice monitor shall assure that a written statement informing each psychotherapy client that respondent's practice is monitored and giving the name, address, and telephone number of the practice monitor is provided to each client. This written notice may be provided in a mandatory disclosure statement. The practice monitoring reports shall acknowledge that such notification is being provided to each psychotherapy client.

(v) If, at any time, the practice monitor is of the opinion that respondent is not practicing psychotherapy in accordance with generally accepted standards of practice and with skill and safety for her clients, the practice monitor shall report her/his opinion and the basis for that opinion to the Board. The practice monitor shall make that report in writing within 48 hours of forming her/his opinion. The practice monitor shall send a copy of that report to the respondent and the therapist when s/he sends the report to the Board. Once such a report is submitted respondent shall immediately cease the practice of psychotherapy.

(vi) Either respondent or her practice monitor may terminate the monitoring relationship on written notice to the other and to the Board not less than 30 days before the date of termination. The notice shall state the reason for the termination. In the event of termination, respondent shall not practice psychotherapy until she obtains another Board-approved practice monitor. The new practice monitor's responsibilities shall be in accordance with the provisions of this order.

d. Respondent cannot supervise or consult with other persons who are providing psychotherapy to clients unless such supervision or consultation is monitored by respondent's practice monitor in accordance with the provisions of paragraph 13c.

e. Respondent shall undergo therapy with a Board-approved therapist ("therapist"). The terms of the therapy are as follows:

(i) The psychotherapy must consist of individual or group therapy sessions, or both, that occur in a frequency to be determined by the therapist, but in no event less frequently than once every week unless otherwise approved by the Board.

(ii) The therapist shall submit written reports to the Board detailing both the progress of the therapy and whether

respondent is safe to practice professional counseling and psychotherapy in accordance with generally accepted standards of practice and with skill and safety for her clients. A copy of the report must be sent to the practice monitor and to respondent. The therapist must submit her/his first report by the fifth day of the month following the first full month of therapy after the therapy commences under the terms of probation. The therapist shall submit subsequent reports by the fifth day of every month thereafter (i.e. on a monthly basis) for the first twelve reports. After the submission of the first twelve reports, unless otherwise ordered by the Board, the therapist shall submit reports by the fifth day of every third month thereafter (i.e. on a quarterly basis).

(iii) In the first report, the therapist shall indicate that s/he has received and read a copy of this stipulation and order, and the Board's file and that s/he understands the duties and responsibilities s/he is undertaking as respondent's therapist.

(iv) If, at any time, the therapist is of the opinion that respondent is practicing psychotherapy in a manner which does not meet generally accepted standards of practice or has a physical or mental disability which renders her unable to treat clients with reasonable skill and safety for her clients or which may endanger the health or safety of persons under her care, the therapist shall report such opinion to the Board. The therapist shall make such report, in writing, within 48 hours of forming such opinion. The therapist shall send a copy of such report to the practice monitor and respondent when s/he sends the report to the Board. Once such a report is submitted respondent shall immediately cease the practice of psychotherapy.

(v) Either respondent or her therapist may terminate the therapeutic relationship on written notice to the other and the Board no less than 30 days before the date of termination. The notice shall state the reason for the termination. In the event of termination, respondent shall not practice psychotherapy without first obtaining another Board-approved therapist, who shall conduct therapy with respondent and report to the Board in accordance with this stipulation and order.

(vi) Respondent shall not practice psychotherapy unless she is undergoing therapy as required in this stipulation and order.

f. During the period of probation respondent shall complete at least twenty hours of Board-approved professional continuing education during each year of probation. Such education shall include courses dealing with client/therapy boundaries, dual relationships, confidentiality issues, and other legal/ethical issues relating to the practice of psychotherapy.

g. Respondent will not treat any client who is diagnosed with or displays symptoms that lead the respondent or her practice monitor to determine that the client's problems include issues that are beyond respondent's training, experience or competence. Should a client seek psychotherapy services from respondent and she or her practice monitor determines (when the client initially seeks treatment or at any time after treatment is commenced) that the client has problems that are beyond respondent's training, experience or competence as part of the client's treatment concerns, respondent will refer that client to another practitioner for psychotherapy treatment and terminate any therapeutic relationship.

h. Respondent must provide written notification to each psychotherapy client with the name, address, and telephone number of her practice monitor. Such notice may be provided in a mandatory disclosure statement. Respondent's failure to provide such written notice to each psychotherapy client may be a violation of this order.

14. During the period of probation, respondent agrees that she will provide or allow her practice evaluator, practice monitor, therapy evaluator, or therapist to provide medical or psychological information or records to the Board in the event the practice evaluator, practice monitor, therapy evaluator, or therapist determines that she is not practicing psychotherapy in accordance with generally accepted standards of practice or has a physical or mental disability which renders her unable to treat clients with skill and safety or which may endanger the health or safety of persons under her care. As part of this stipulation and order respondent explicitly waives her right to maintain confidentiality of medical and psychological records and information provided to her practice evaluator, practice monitor, therapy evaluator, or therapist if the practice evaluator, practice monitor, therapy evaluator, or therapist determines that she is not practicing psychotherapy in accordance with generally accepted standards of practice or has a physical or mental disability which renders her unable to treat clients with reasonable skill and safety or which may endanger the health or safety of persons under her care.

15. Respondent is responsible for the reports due under this order and must take reasonable steps to assure that her practice monitor and therapist report to the Board in accordance with this order. The failure of the practice monitor or therapist to submit the reports to the Board in a timely and regular basis in accordance with the terms of this order may be a violation of this order.

16. Respondent must pay all costs and/or expenses incurred for practice evaluation, mental status evaluation, practice monitoring, therapy, education, and any other expenses incurred in fulfilling the requirements of this order.

17. Any violation of this stipulation and order or any unfavorable report to the Board from the practice monitor or therapist may constitute grounds for action pursuant to C.R.S. §§12-43-701 to 12-43-711. This would also be the basis for requiring respondent to enter into a stipulated order for injunction in accordance with paragraph 6.

18. All time periods and obligations of the probation as stated in this order run only while respondent is engaged in the practice of psychotherapy under the monitoring of a Board-approved practice monitor and treatment of a Board-approved therapist. They are tolled and suspended at all other times.

19. If, after resuming the practice of psychotherapy, as authorized in this order, respondent discontinues the practice of psychotherapy, she shall provide written notification to the Board within thirty (30) days of ceasing the practice of psychotherapy. If she subsequently resumes the practice of psychotherapy she shall notify the Board in writing of her resumption of practice, providing the date she resumed practice and her address.

20. In the event respondent moves to another jurisdiction, she shall provide written notification to the Board within thirty (30) days of her move, and provide her new address and the date on which she relocated.

21. As used in this stipulation and order, the terms "practice of professional counseling", "professional counseling practice", and "engaged in the practice of professional counseling" shall have the same meaning and scope as the term "professional counseling" as defined in C.R.S. §12-43-601(4); and the terms "practice of psychotherapy", "psychotherapy practice", and "engaged in the practice of psychotherapy" shall have the same meaning and scope as the term "psychotherapy" defined in C.R.S. §12-43-201(9).

22. No agreement, understanding, representation, or interpretation not contained in this order may be used to vary or to contradict its terms.

23. Each party shall bear its own costs, shall pay its own witness fees, and shall pay its own attorney fees.

24. Each provision of this order is separate. In the event of litigation involving compliance with the terms of this order, the issues will be restricted to those raised by the interested parties; the resolution of those issues will affect only the pertinent parts of the order; and the parties will be obligated by the judicially-construed parts of the order as if they were part of the original order.

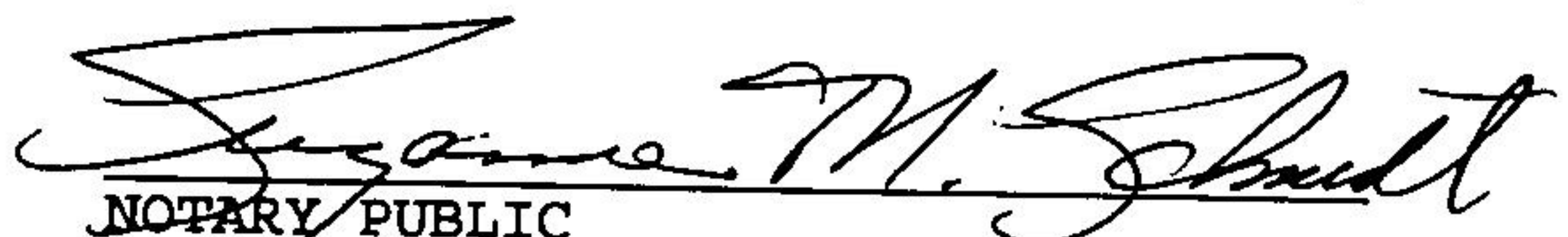
25. This stipulation and order shall take effect on acceptance and signature by the Board.

26. This stipulation and order is a public record.


SHARON K. BENSON, LPC
Respondent

Subscribed and sworn to before me in the County of
Denver, State of Colorado, this 17th day of
January ~~1996~~ ¹⁹⁹⁷.




NOTARY PUBLIC

My Commission Expires:

1-10-01

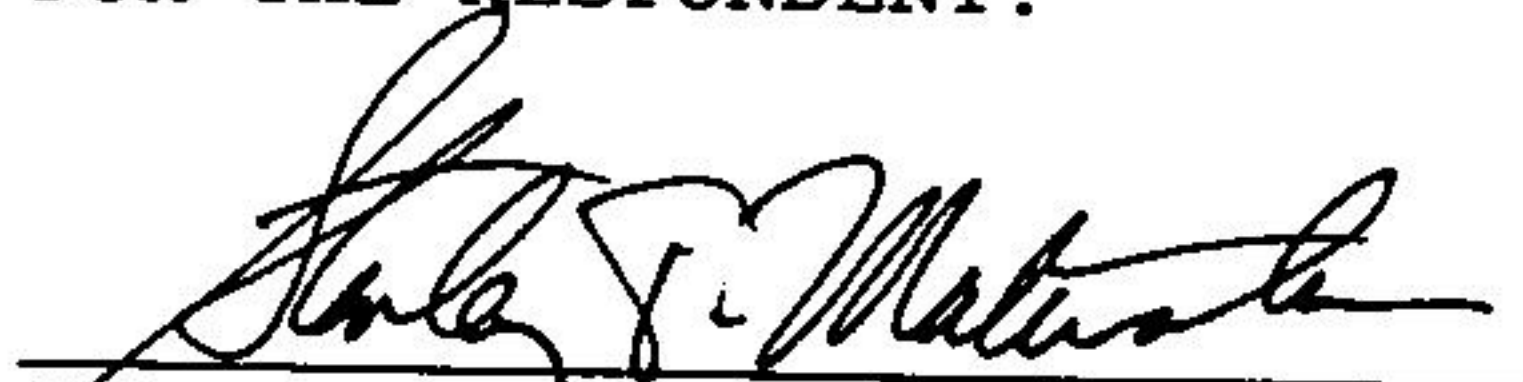
ACCEPTED, SIGNED, AND ORDERED this 23RD day of JANUARY,
199~~8~~⁷.

COLORADO STATE GRIEVANCE BOARD


DANIEL R. ROBINSON
Board Chair

APPROVED AS TO FORM

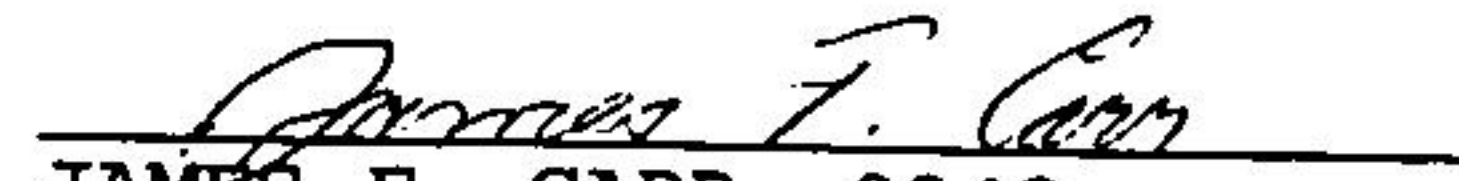
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